



Ministry of Education, State Department
of Basic Education



Positive Discipline

A Handbook for Teachers



Kenya Institute of
Curriculum Development

Positive Discipline

A Handbook for Teachers

Positive Discipline, A Handbook for Teachers.
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Foreword

For a long time, the conventional method of instilling discipline in children in many countries, has been corporal punishment. This has been a regular part of many peoples' school experience, to an extent that it almost seems a normal thing for a teacher to do in the name of disciplining learners. It is however, important to note that corporal punishment is a form of child abuse, as it deliberately inflicts pain on children. This causes discomfort and hopefully, the undesired behaviour is expected to change to the desired.

Researches conducted in various countries in Africa have proven that corporal punishment is not effective, especially in the longterm. It can cause children shame, guilt, anxiety, aggression, a lack of independence, and a lack of caring for others. This poses greater problems for teachers, caregivers and other children.

When in 2001 the Government of Kenya banned the use of corporal punishment in all settings, the Ministry of Education issued a ministerial circular that emphasised on this ban in all schools. However, this move only resulted in disempowered teachers who were not equipped with alternative disciplinary choices that can support and guide learners towards acquiring values and skills necessary for shaping good behaviour.

This publication presents a positive approach to discipline which guides teachers to help learners acquire skills and values critical for developing self-discipline throughout their learning process. It gives the teacher skills to engage learners and give them the information that they need to learn in ways that further helps them to succeed, and greatly supports their development. It respects children's right to healthy development, protection from violence, and active participation in learning.

Positive approach to discipline is not about being permissive and letting learners do whatever they want; but rather communicating expectations. It finds solutions to problems and challenges that influence learner's negative behaviour and more so, teaches nonviolence, empathy, self-respect, human rights, and respect for all.

This guideline, Positive Discipline: A Handbook for Teachers is intended for all professionals engaged in the education system at all levels. These include: teacher assistants, principals, school managers, college student teachers, and other professionals responsible for ensuring learning institutions provide quality learning experiences for all learners. It will be accompanied by a training manual that will be used to ensure the knowledge herein, is translated into practice through the reflective skills building. This will be further elaborated and demonstrated through the training process. It is hoped that this effort will result into a community of practice in positive discipline among teachers; who will eventually become champions of positive discipline in Kenya.

Dr. Belio R. Kipsang, CBS.
Principal Secretary
State Department of Education

Acknowledgement

The development of this handbook has taken the goodwill and commitment of experts and stakeholders from both non state and state organisations. The stakeholders endorsed the initiation of the development process and validated the draft Positive Discipline: A Handbook for Teachers document. A team of twenty technical working group members worked tirelessly in writing workshops and during their free time to develop the content of this handbook.

The Ministry of Education wishes to acknowledge the support of the following partners and organisations in the production of this handbook: Save the Children, GOAL Kenya, Plan International, Childline Kenya, World Vision, and ANPPCAN Kenya Chapter.

I would also like to acknowledge the dedication and hard work invested by the officers listed below who participated in the drafting of the handbook.

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Preface

The “Positive Discipline, A Handbook for Teachers” is a product of a fruitful collaborative relationship between the education sector and the child protection sector. The development process embraced an all inclusive approach that garnered the input of a vast majority of stakeholders in education.

Two stake holders meetings were held to kickstart the development process. This brought together children representatives, teachers, Curriculum Development Support Officers, Education Officer and Quality Assurance officers. It also included the participation of child protection actors from civil societies and government agencies, faith-based organisations, and teacher professional bodies.

The draft document was subjected to the critical analysis of experts in a two-days peer review workshop and validated in a national forum by more than sixty stakeholders.

As clearly stipulated in the Teachers Service Commission (TSC) code of Conduct and Ethics, teachers are obligated to accord proper care and protection to each learner. “A teacher shall be entrusted with the duty of care of a child, including a child with special needs and shall ensure that the child is protected from abuse, neglect, harmful cultural practices, and all forms of violence, discrimination, inhuman treatment, corporal punishment and exposure to hazardous or exploitative labour”.

Teachers are role models to learners, and they therefore leave a big impact on the lives of the learners they interact with. Question is, is it a positive or a negative impact?

The importance of a positive and non-violent relationship between a teacher and the learner is vividly demonstrated in the poem below, “*Children Learn What they Live*” by Dorothy Ntete.

If children live with criticism, they learn to condemn.

If children live with hostility, they learn to fight.

If children live with ridicule, they learn to be shy.

If children live with shame, they learn to feel guilty.

BUT,

If children live with tolerance, they learn to be patient.

If children live with encouragement, they learn confidence.

If children live with praise, they learn to appreciate.

If children live with fairness, they learn justice.

If children live with security, they learn to have faith.

If children live with approval, they learn to like themselves.

If children live with acceptance and friendship, they learn to find love in the world.

This handbook is a rich resource for teachers and other educationists. It informs the establishment of the much needed healthy working relationships with learners and the nurturance of national values.

The implementation of this handbook at the school level will contribute significantly to the establishment of safe and protective schools and foster effective teaching and learning process in all our basic education institutions.

Nancy Macharia (Mrs.)
Secretary/Chief Executive Officer
Teachers Service Commission

Introduction

Physical violence and other forms of humiliating punishment against children are outlawed in Kenya in all settings. The Universal Declaration of Human Rights 1948, African Charter on the Rights and Welfare of the Child and UN Convention on Rights of the Child (UNCRC) provide for elimination of all forms of violence.

UNCRC Article 37 states that no child should be subjected to torture, cruel, inhuman or degrading treatment or punishment.

The Constitution of Kenya (2010) in Article 29 states that every person has the right to freedom and security, which includes the right not to be: subjected to any form of violence from either public or private sources, subjected to torture in any manner whether physical or psychological, subjected to corporal punishment, treated or punished in a cruel, inhuman or degrading manner.

Article 53 (1) (d) states that every child has the right: to be protected from abuse, neglect, harmful cultural practices, all forms of violence, inhuman treatment and punishment, and hazardous or exploitative labour.

The 2001 ban on caning as a form of punishment in schools in Kenya did not provide teachers with any alternative positive and nonviolent discipline methods. Evidence exists of violence against children despite this ban. The 'Violence Against Children' report of 2010 indicates that prior to age 18, as reported by 18 to 24 year olds (lifetime experiences) during childhood, 32% of females and 18% of males experienced sexual violence. About 66% of females and 73% of males experienced physical violence, while 13% of females and 9% of males experienced all three types of violence during childhood.

Mothers and fathers were the most frequently mentioned perpetrators of physical violence by females and males who reported being punched, kicked, whipped or beaten with an object by a parent or adult relative prior to age 18.

On the other hand, teachers accounted for 99% of perpetrators reported by males and 96% of perpetrators mentioned by females who reported being punched, kicked, whipped or beaten with an object by an authority figure prior to age 18.

It is against this backdrop that the Ministry of Education in partnership with other organisations that are acknowledged herein, has come up with a functional and sustainable solution to address this issue. The Ministry of Education together with partners has resolved to bridge this gap by empowering both the serving teachers and the teacher trainees with relevant information and skills to foster positive discipline in learning institutions.

This handbook is intended for use by the teachers in Early Childhood Development Education (ECDE), primary and secondary schools. It will also be available in teacher training colleges (TTCs) to be used alongside the Positive Discipline Facilitators Manual. The module will be implemented by the education department (which deals with the teaching and training of teachers in professional practice). The units in this handbook follow a logical flow from understanding children behaviour to creating a safe environment that enhances positive discipline. It has 6 units addressing key issues in school discipline and each unit suggests practical approaches and an assessment for the teacher.

Definition of Terms

The terms below have been regularly used in this handbook within the context of topical issues in positive discipline:

Behaviour	A specific observable and quantifiable action.
Behaviour management	A process that coordinates the efforts of people towards achieving desirable behaviour.
Child	Person below eighteen years of age.
Children government	A representative body composed of children elected by other children to organise social, curricular and co-curricular activities and to participate in governing their school.
Child sex tourism	An act by a person, including a juristic person who: (a) Makes or organises any travel arrangements for or on behalf of any other person, whether that other person is resident within or outside the borders of Kenya, with the intention of facilitating the commission of any sexual offence against a child, irrespective of whether that offence is committed; or (b) Prints or publishes, in any manner, any information that is intended to promote or facilitate conduct that would constitute a sexual offence against a child. (c) Introduces, organises or facilitates contact with another person under the auspices of promoting tourism, in any manner, in order to promote conduct that would constitute a sexual offence against a child.
Child prostitution	An act by a person, including a juristic person who, in relation to a child: (a) Knowingly or intentionally makes or organises any travel arrangements for, or on behalf of a child within or outside the borders of Kenya, with the intention of facilitating the commission of any sexual offence against that child, irrespective of whether the offence is committed; (b) Supplies, recruits, transports, transfers, harbours or receives a child, within or across the borders of Kenya, for the purposes of the commission of any sexual offence under this Act with such child or any other person. (Sexual Offences Act of 2006)

Child sexual abuse	A form of child abuse in which an adult or older adolescent abuses a child for sexual gratification. Forms of child sexual abuse include: asking or pressuring a child to engage in sexual activities (regardless of the outcome), indecent exposure of the genitals to a child, displaying pornography to a child, actual sexual contact against a child, physical contact with the child's genitals, viewing of the child's genitalia without physical contact, or using a child to produce child pornography. (Wikipedia)
Complaint mechanism	A defined system in which children complaints are addressed in a school .
Developmental stage	The milestones a child negotiates in their life, they cover physical, emotional, cognitive, social and spiritual aspects.
Discipline	The process of imparting knowledge, skills and values to children about expectations, guidelines and principles that will enable them mitigate challenges of everyday living and enhance positive relationships with others around them.
Exceptional children	Children with special needs or abilities above the normal child and that calls for specialised care or treatment.
Indecent act	This entails any unwarranted contact like placing one's chest against a person's back, touching another person's buttocks or chest, or winking at someone seductively against their consent. Such acts are intended to seek sexual gratification from another person without their consent; or even to embarrass them, or the child being targeted.
Mentorship	A personal developmental relationship in which a more experienced or more knowledgeable person helps to guide a less experienced or less knowledgeable person. The mentor can be older or younger but have a certain experience.
Punishment	The authoritarian imposition of something undesirable or unpleasant upon an individual or a group of people in response to behaviour that an authority deems unacceptable and a violation of some norms and rules.
Positive discipline	An approach designed to positively teach young people to become responsible, respectful and resourceful members of their communities.

Psychosocial support	This is the counselling, advice and understanding accorded to a child whose life has been subjected to abuse or any form of violence.
Rape	A person commits the offence termed rape if - (a) He or she intentionally and unlawfully commits an act which causes penetration with his or her genital organs; (b) The other person does not consent to the penetration or (c) The consent is obtained by force or by means of threats or intimidation of any kind. (Sexual Offences Act of 2006)

UNIT 1: FACTORS THAT INFLUENCE BEHAVIOUR IN CHILDREN

Keywords:

Behaviour, Developmental Needs, Developmental Competence, Socialisation Agent, Temperament, Psychosocial Needs

Introduction

Learners spend a good amount of their time in school with teachers. It is every teacher's desire to facilitate optimal development and learning achievement for each individual learner.

Children behave in certain ways, and the manner in which they behave is mainly motivated by their needs. Relationship challenges may set in between the teacher and the learner; and the teacher is not able to tell why the learners behave the way they do. Failure to understand children behaviour may strain the relationship between the child and the teacher. Some of the behaviour may be interpreted as indiscipline causing the teacher to punish the child. This unit seeks to address issues affecting behaviour of children in relation to a child's developmental stages, desired competencies, and the challenges in achieving these competencies. It also explores the role of the teacher in supporting the child to mitigate these challenges in order to acquire the relevant competencies.



Unit Objectives



Sub-units

- a) Human developmental stages – developmental needs, age-appropriate competencies, identified/perceived misbehaviour and relevant support
- b) Socialisation agents – family, school, faith based organisations (FBOs), community, peers, media, public model
- c) Temperaments, dimensions and children behaviour
- d) Psychosocial factors - emergency situations, major life changes (change of social status, chronic illness)

Developmental Stages and Behaviour in Children

Developmental Stage: 0 – 3 years

Developmental needs	Competencies	Likely observed negative behaviour	Relevant support
Nurturance	Trust	Hoarding/stingy	Proper toilet training
Expression of feelings	Secure attachment	Rigidity	Nurturing
	Self – control	Messy	Structures – clear instructions
	Willpower	Clingy	Proper feeding
	Self confidence	Obsessive	
		Over organised	
		Oral fixation, like -thumb sucking, chewing items	
		Demanding	
		Dependent throughout life	

CASE 1: ALEX (0-3 YEARS)

Alex was brought up in Tao city. His parents worked in busy organisations. They had to leave him under the care of a househelp at the age of two months. During the first 3 years of age, Alex had a change of over 10 house helps. When he joined Baby Class, he had serious problems settling down. He cried most of the time and shunned everyone. Though Alex had been toilet trained, he often soiled himself.

Insight

Alex had unstable early relationships due to the high turnover in his caregivers, mainly househelps. This denied him the chance to a secure trusting home environment. He learnt mistrust, poor self-control and had problems trusting others.

Teacher's Role

Create a secure and trusting relationship with Alex. Support him as he learns to trust, and promote his self-control and confidence by appraising him when he does well.

Developmental Stage: 3–6 Years (Pre-school)

Developmental needs	Competencies	Likely observable negative behaviour	Relevant support
First sexual and gender role orientation	Healthy sexual and gender roles orientation	Playing with genitals	Healthy role modeling
		Playing house in the classroom	Role appropriate activities
	Self confidence	Very inquisitive	Responding to questions
	Patience	Excessive play	Clear well explained rules
	Play	Disruptive	Support children abilities
			Help them correct mistakes
			Encourage children to play with one another (cooperative play)

CASE 2:TATU (3-6 YEARS)

Tatu had spent 3 happy years in her Pre-School. She had a close and happy relationship with all her teachers. She mingled well with the other children. Tatu finally graduated from her Pre-Unit Class and joined Maneno Primary School. Her first day in school was very unpleasant. She found the teacher unfriendly. The teacher threatened to beat them up when they made noise. The sitting arrangement in her class was different from her previous nursery school. She felt overwhelmed by the many instructions the teacher gave and there was no one to help her do what was expected of her. Within a week, Tatu had begun to stammer, her handwriting was illegible and she had problems coping with her peers and teachers.

Insight

At her age, Tatu was struggling to initiate and complete tasks meant to build her self-confidence and will power. The transition from her Pre-School to Primary School was not supportive and she therefore developed shame and self-doubt. Consequently, this led to her feeling inadequate. She developed low self-esteem and the inability to perform tasks as expected.

Teacher's Role

The teacher needs to help Tatu have a smooth transition from Pre-School to Primary School, and support her by taking action and using words of encouragement.

Developmental Stage: 6-12 Years (Primary School Level)

Developmental needs	Competencies	Likely observable negative behaviour	Relevant support
Healthy social relationships	Positive peer relationships	Negative peer influence	Cultivate warm relationships
Acceptance	Healthy teacher/pupil relationship	Poor choices	Encourage positive relationships with peers and others
Identification with peers	Intellectual pursuit	Inactive participation	Appreciate similarities and differences and empowering abilities
Making choices	Social and communication skills	Stubborn, rude, unruly	Create time for play (can be supervised)
Need for approval	Ability to exploit potential (industry)	Poor class participation due to inferiority and inadequacy	Teach them how to be fair and just
	Self - confidence, self esteem	Hyperactivity	Assign age appropriate tasks and responsibilities
		Withdrawn	

CASE 3: MAMBO YOTE COUNTY (6-12 YEARS OLD)

In Mambo Yote County, there was very high academic performance expectation from all stakeholders. All schools employed all manner of strategies to ensure that their pupils scored high grades. In Matumaini Primary School, teachers caned learners using proportionate strokes for any questions answered wrongly. The performance of the pupils was inconsistent over the entire year. The learners exhibited a lot of fear towards their teachers and examinations. When they presented items for music and drama festivals and other co-curricular activities, they always earned an average or below average performance.

Insight

At this stage the learners need affirmation and encouragement to help them identify and use their abilities. The push to perform academically kills the development of the other social, moral and spiritual development aspects. Threats may make a child perform what is expected of them, but the inner child breaks under the weight of the same. This results into poor self understanding and acceptance and is likely to affect developmental competencies of the next stage.

Teacher's Role

The teacher needs to balance these aspects of normal development of the learners and allow them to explore their potential and abilities.

Developmental Stage :12-18 Years (Adolescence)

Developmental needs	Competencies	Likely observable negative behaviour	Relevant support
Develop self-identity Choose and nurture suitable career Need to develop independence Develop healthy relationship with the opposite sex and peers Discover unique abilities Appreciate and help others	Functional self-understanding and acceptance Responsible freedom Sense of justice Healthy opposite sex and peers relationship Choice of suitable career Development of gender appropriate behaviour, attitudes and attributes	Negative peer influence Role and identity confusion Rebellion Indulgence in premarital sex and drug abuse. Truancy Lesbianism and homosexuality.	Encourage healthy self-identity and acceptance (be it ethnic, racial and religious identity) Listen more and talk less Nurture talent and gifts Role modeling Organise inter-school social activities Assigning responsibilities Providing relevant information in all areas Expose learners to innovation and creativity Organise career days Organise school family set ups Organise community service programs so they can develop empathy for others Introduce them to national and international laws (invite guest speakers/experts)

CASE 4: JULIA AND ROBERT (12-18 YEARS OLD)

Julia is 14 years old, and Robert is 15 years old. Both are in a mixed day secondary school. They live 300 meters apart at home. They both went to Wema Primary School and both participated in drama and sports. They were both average performers in academics. One Friday evening after games, Mr. Chunga (teacher on duty) found the two in the football pitch kissing. He slapped both of them and frog matched them to the deputy's office. They were both asked to write letters of apology and bring their parents to school the following Monday. Both of them were too scared to tell their parents what had happened. The parents accompanied them to the school. During the assembly, the deputy principal announced that the two were caught kissing and that they would be given another week off to continue with the kissing. This situation was both embarrassing for the parents and the two students. Julia never returned to that school and Robert who was left behind became very depressed.

Insight

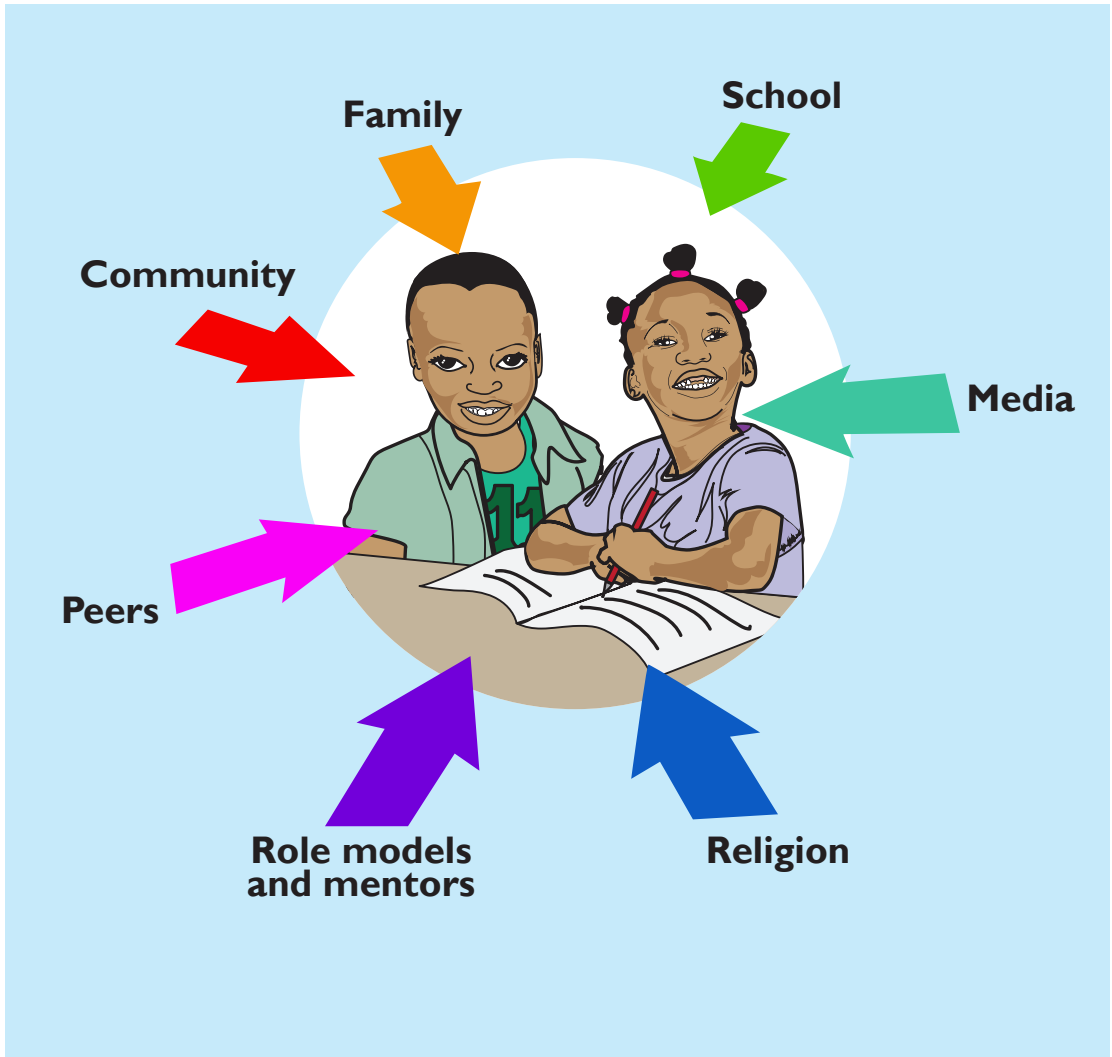
Both Julia and Robert were in the adolescent stage where lots of physical and hormonal changes take place. This leaves many teenage learners fighting hard to avoid exploring their sexual identity and strong attraction to the opposite sex. Julia and Robert were ashamed of their behaviour and the teacher on duty and the deputy made the situation worse by dealing with the matter publicly. Julia could not cope with the situation and avoidance of the school became the best way to deal with the situation. Robert became equally devastated because he had come to know Julia for a long time and the separation from Julia must have made him suffer loss and grief leading to depression. They both felt rejected by significant others.

Teacher's Role

The teacher in this case should be aware of the developmental changes of adolescents and provide relevant information and guidance to the students instead of shaming them in public. In this stage learners need to be informed of the impact of adolescent changes on opposite sex relationships. They also need to be taught how best to develop healthy relationships with the opposite sex and peers, while maintaining a balance between social and academic life.

Socialisation Agents and Children Behaviour

Children behaviour is largely defined by the socialisation agents in their life. The key socialisation agents include: the family, school, religion, community, peers, media and public models (public leaders or celebrities). Children learn and imitate what they see and hear from the socialisation agents. They internalise the values, beliefs and attitudes of the socialisation agents and this forms the basis for their behaviour.



Family

Family is the first and most important socialisation agent for a child. A child learns from the parents and other significant family members on how to relate with self and others. Children raised by loving and protective caregivers will internalise positive attitudes such as: love, respect, trust and responsibility. They will consequently choose positive behaviour. On the other hand, children raised in families characterised by conflict, neglect and insecurity will harbour negative values like: mistrust, hatred, rejection, self pity and inadequacy. This automatically results in negative behaviour.

School

The school is the second most important socialisation agent. A child-friendly school will impact positively on learners behaviour. Children crave acceptance and recognition by their teachers. They look up to them for guidance and support. Teachers who model positive attitudes and behaviour patterns perpetuate the same in their learners. As these learners imitate and internalise the values and attitudes of their teachers, they normally turn out to be confident, responsible, creative and respectful to all. Similarly, teachers who are judgemental and violent towards their learners will raise learners with low self esteem, insecurity, and who lack initiative and creativity.

Religion

Most of the children in Kenya are raised in families with a particular religious affiliation. Religious organisations will foster positive behaviour in children. This is especially so if their religious teachings are based on positive values such as love, integrity, responsibility, and respect for all. However, if the religious faith exposes children to negative values such as discrimination, negative radicalisation and disregard for life, children are bound to exhibit antisocial or unacceptable behaviour patterns.

Communities

Kenya has a multicultural society with 42 ethnic communities. This has created a diverse culture with many rich and progressive traditional practices and beliefs. However, some of the cultural practices and beliefs are retrogressive and harmful to children. These include: female genital mutilation, discrimination against children, incest, child marriage, child labour, ethnic rivalry and violence. If children grow up in communities where justice, peace and harmony is upheld for all; they learn to be fair, responsible and to coexist peacefully with others.

Media

In this era of advanced technology media stands out as a major socialisation agent for children because it taps all the five senses. Modern mass media socialisation tools include: social media (Facebook, Whatsapp, and Instagram, Twitter, LinkedIn), electronic media (television, radio, cell phone), print media (magazines, newspapers, pornographic materials, violent material) and internet access.

Parents and teachers need to provide guidance to children on what they should, and should not access from the media. Some control on negative platforms may be exercised because cases of negative influence have been reported. These include: radicalisation, perverse sexual behaviour and recruitment into cults. There is need to put guidelines in place to monitor the use of media by learners like involvement of ICT personnel and parents through PTA.

Peers

As children approach adolescence they seek the approval and acceptance of their peers more than their parents and other adults in their lives. Majority of the children will strive to behave in ways that please their peers, and especially the popular to gain their validation. Consequently, many youngsters engage in negative behaviour such as: smoking, rebellion against school authority and other figures of authority, homosexuality, truancy, and such others. During this stage, teachers can support learners by listening to them in a friendly and respectable manner. This encourages them open up, giving the teacher the avenue to provide all the relevant information that they need in relationships, careers, sexual health, and different sectors of their lives. This will ensure an on-going friendly teacher-learner relationship.

Role models

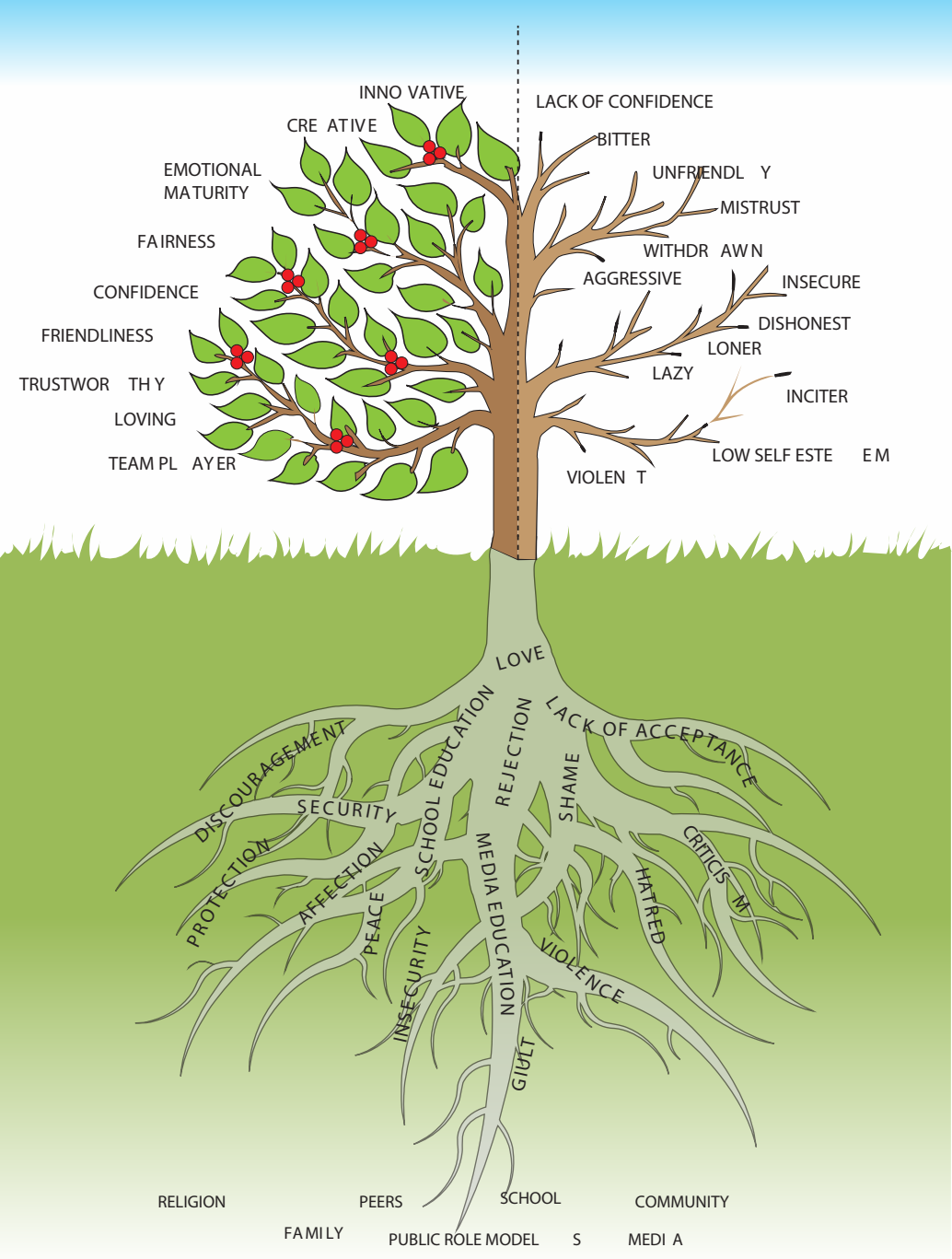
Every community or society has members who are highly regarded and admired because of their prestigious status or achievements in the eyes of the community. These personalities command a lot of influence upon the members of the community, children included. In Kenya the famous among us include: athletes, politicians, musicians, comedians, academicians and other celebrated professionals.

Fact is that public role models may have both positive or negative influences on the learners depending on the values, attitudes and behaviours they project. Teachers therefore need to help learners to critically evaluate their role models, based on the values that they stand for.

Categories of Socialisation Agents

Functional socialisation agents	Dysfunctional socialisation agents
Love	Abusive - Physically, verbally, emotionally, neglectful, exploitative
Warmth	
Protection	Rigid rules and expectations
Security	Insecurity
Empowerment - encourage positive feedback and creativity	Sense of doubt
Controlled emotional wellbeing	Lack of purpose
Peaceful coexistence	Emotional outburst
Fairness	Uncontrolled anger
Rules are flexible	Conflicts
Moderate performance demands	Unfairness
Sense of purpose and focus	Discouragement
Respect – language and tone of voice	Low self esteem
Acceptable behaviour	Antisocial behaviour
Non violence	

Effects of Socialisation Agents



The Learner's Temperament and its Impact on Behaviour

Every child has unique inborn characteristics that influence their behaviour. The following are the dimensions of unique characteristics that a teacher should be on the look out for, while interacting with learners. According to Durrant, J.E (2013), the following child's temperaments impact on outcome behaviour.

Activity Level

Some children are very active, while others are not. They cannot sit still. They make unnecessary noise and jump all over; while the inactive ones enjoy quiet activities like drawing, writing, watching TV, withdrawal from active play to be on their own.

Distractibility

Some children have problems concentrating or focusing on a given task. They jump from one task to the other. Such children have very short concentration span even in class. They may abandon tasks assigned by the teacher. The teachers need to vary learning activities, closely monitor them and help them to remain focused. Other children have longer concentration span and will complete their tasks without shifting their attention.

Regularity

Some children have predictable patterns of behaviour like waking up, eating, sleeping, going to the bathroom among other routine activities. This routine can frustrate them if not followed in school. Similarly, some children are fairly inconsistent and in school they have difficulties in observing school routine.

Persistence

Some children have a very strong will power; they will work on a challenging task and not give up until it is done. They set goals and follow them through. On the other hand, other children have got less will power and give up on a task as soon as challenges set in. For instance, if they fall they stop climbing or if they do not succeed in solving a puzzle easily they lose interest.

Response to new situations

Some children love experiences, they got no problem making new friends and fitting in new settings. Such children are open to experiences, hence learn easily. They may also venture into unsafe environments and situations. They need close supervision and clear guidelines. Other children resist new experiences and have difficulties relating to new people and venturing into new situations. Teachers need to be patient with the children and encourage them to walk in new situation.

Intensity

Some children respond to situations with intense emotions. For instance, when they are unhappy they throw tantrums and exhibit intense anger. If they are happy they show deep excitement and laugh joyfully. Other children barely express their emotions. They cry quietly when sad, and smile quietly when happy. Teachers need to accept each child as they are and validate their feelings, thoughts and behaviour.

Adaptability

Some children adjust easily to change. For instance, new school environment, neighborhood; and change of social status. While others may take long to adjust to their new situations. Teachers need to be patient, reassuring and supportive.



Psychosocial Issues and their Effects on Children Behaviour

Psychosocial issues are social hazards or challenges which the learner is not able to cope with or to address. The learner is most often overwhelmed by the issue. This may result in emotional disturbances and negative behavioural symptoms.

Issue	Effects	Possible behaviour outcomes
Disasters (human-made and natural)	Homelessness, displacement, low self-esteem	Low self-esteem marked with withdrawal, aggressiveness, and passiveness in class activities
Peer pressure (cliques, gangs, classmates, pals)	Loss of identity, general anxiety, lack of focus, fear, easy targets of radicalisation	Breaking school rules, criminal activities, low performance, relationship conflicts, loss of interest, bullying, abuse of drugs and alcohol
Family dynamics for example: orphanage, adopted, single parents, child headed families, divorce, separation, alcohol and drugs abuse, grandmother-headed families	Child is overloaded with responsibilities, loss of childhood, identity crisis and dependency	Chronic absenteeism, identity confusion, aggressive, moodiness, defensive, and attention seeking
Parenting styles - for example; submissive, authoritarian, absent parents	Lack of focus and life skills, low performance, depression, schizophrenia, and low self-esteem	Aggression, rebellion, premarital relationships, impulsive, withdrawal, poor decision making, and abnormal behaviour
Chronic/terminal illnesses like diabetes, HIV/AIDS, obesity	Negative self-worth, anger issues, loss of relationships and connectivity, depression	Passive aggression, absenteeism, dropping out of school, and the eventual withdrawal
Negative or unhealthy social environment. For example; in a school, church, or community with harmful cultural practices and traditions	Related context traits. For instance; children from violent contexts may become aggressive	Defensive, aggressive, some passive, and tolerance to abusive relationships
Sexual orientation crisis	Development of same sex relationships, drug abuse, prostitution and sex addiction	Sexual offending behaviour, carrying and distributing pornographic materials, secrecy, withdrawal from family and peers

Self-Assessment

- Are you able to identify the developmental stages of the learners in your class?
- What are the developmental needs for your learners, and the negative behaviours that they are likely to engage in?
- What competencies/life skills should your learners acquire if their developmental needs are met?
- Which are the socialising agents that influence behaviour in learners?
- How do psychosocial issues negatively impact on behaviour of your learners?

Application

How can I help my learners?

Name of the Learner	Negative behaviour exhibited by the learner	Causes	Goal /positive behaviour expected from the learner	Relevant support by the teacher

Conclusion

A teacher is very influential in the life of a learner. The more aware the teacher is about the learner's developmental stages and relationships with key socialisation agents; the more they stand a better chance to support the learner overcome behavioural problems.

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UNIT 2: FOSTERING POSITIVE BEHAVIOUR THROUGH TEACHER/LEARNER HEALTHY RELATIONSHIPS

Keywords:

Self-awareness, Self-concept, Relationship Needs

Introduction

The term relationship in this context refers to the way a teacher and a learner regard and behave towards each other. Obviously, the relationship skills should focus on healthy learning relationships. All healthy relationships require a level of interpersonal interaction, trust and rapport to flourish. A school is a community with different types of people who relate in different ways and levels. The teacher plays a significant role in building effective relationships with learners.

Unit Objectives



By the end of the
unit, I should be
able to...

Sub-units

- a) Elements of a healthy teacher/learner relationship
- b) Causes of unhealthy teacher/learner relationship
- c) Strategies to build and sustain healthy relationship between learners and teachers

Elements of a Healthy Teacher/Learner Relationship

A healthy teacher/learner relationship is nurtured by the teacher's ability and willingness to know and understand every individual learner. Teachers are able to do this when they listen to the words and feelings of their learners and observe their behaviours patterns. This helps the teacher to understand the meaning of the learners verbal and nonverbal communication. The person of the teacher plays a big role in shaping his or her relationship with the learner. The more insight and control a teacher has on his thoughts, feelings and behaviour; the better he or she is able to relate with individual learners.



Children Learn how to relate from teachers

Teacher / Learner

- Trust
- Respect
- Effective communication
- Approachability
- Confidentiality
- Role modeling
- Care giving
- Empathy
- Understanding
- Active listening skills
- Flexibility
- Decision making
- Giving/receiving appropriate feedback
- Fair, firm and just

Learner / Learner

- Negotiation skills
- Respect
- Empathy
- Attitude
- Assertiveness
- Peer relations
- Positive completion
- Communication skills
- Respect
- Openness

Causes of Unhealthy Teacher/Learner Relationship

Lack of adequate self-awareness

Self-awareness refers to having a clear and realistic perception of a teacher's personality. This includes: weaknesses, limitations, thoughts, beliefs, motivations and emotions. It allows the teacher to understand oneself and the learners.

It is important for the teacher to be aware of their own values, beliefs, attitudes, needs and ambitions and how they affect the way they view and relate with their learners.

Most often teachers impose their values on the learners or use the learners to meet their personal needs. This only ends up doing more harm than good to the learners.

CASE STUDY I

In school 'A' pupils were forced to miss their health break and other co-curricular activities so as to cover up for lost time in syllabus coverage. The pupils were disgruntled but obeyed for fear of being punished.

Whose need was the teacher meeting? What need did the teacher have that motivated him to make this decision? Could the teacher's need have overshadowed the learners' needs?

Insight

The pupils have a need and right to play. They were disgruntled because their need was frustrated. Their basic need for play must be met first before they can aspire for education which is a much higher need in their hierarchy of needs.

The problem would have been better solved if the teacher made time to actively listen to the pupils and identify their needs. Involving the pupils in the decision making process on issues affecting them helps them to own their problems and be part and parcel of the solutions to the same.

CASE STUDY 2

On this particular afternoon, Class Five pupils were in class alone because their Social Studies teacher was not in. The English teacher came to class and found them making noise. He caned all the pupils. The learners were very bitter and extremely afraid of their teacher.

Insight

What prompted the teacher to resort to violence? Did the caning achieve the desired results?

The teacher may have reacted in anger. His goal was to train the learners to make proper use of learning time. The caning may instill fear in the pupils which might make them refrain from making noise in future; but it did not teach them the skill of working alone in the absence of the teacher.

The teacher may not have reflected on the support that the learners needed from their teachers so that they could undertake some productive learning activity.

A teacher who lacks adequate self-awareness may engage in power games with the learners as demonstrated in case 1 and 2 above. A teacher who is self-aware will strive to understand each individual child and provide them with the support they need to effectively meet their needs.

Negative Self Concept

Self-concept is a collection of beliefs about oneself that revolve around their perceptions. It includes elements such as the body image, self-image, self-esteem and ideal self. Generally, self-concept embodies the answer to “who am I”.

A teacher with a positive self concept is content with themselves, and will have a positive and helpful attitude towards the learners. The teacher will experience challenges if he/she has feelings of inadequacy in any area of their life which they have not come to terms with. Such a teacher is likely to impose their values, attitudes and beliefs on the pupils; denying them the chance to develop their unique individuality.

CASE STUDY 3

Biddi school was a very well reputed upcountry school because of its exemplary performance in examinations. Its fame attracted many students from urban settings. However, most of them encountered problems with the teachers. The teachers felt that they had a negative influence on the other learners and they were always blamed for most of the indiscipline cases in the school.

Insight

Is it true that all learners from urban areas are indisciplined? Could it be that they have a different way of looking at things because of their background? Should they be discriminated against because they are different? Is it possible to use our differences to enrich our relationships rather than to divide us?

Strategies to Build and Sustain Healthy Relationships between Learners and Teachers

Self-awareness as a strategy for building and sustaining healthy relationships between learners and teachers

Self-awareness helps the teacher to gain insight on what upsets his/her learners and how to manage the same so that it does not impact negatively on their decisions and actions. The teacher can use the insight gained to teach learners on the importance of understanding their behaviour and how to change where necessary. The learners also gain insight on the importance of self-control in behaviour management.

Self-awareness enables the teacher to make changes in their thoughts and interpretations. This leads to change in emotions and behaviour. An example of how this may happen is “a teacher caning learners because they were caned”. A teacher with a developed self-awareness will be able to get in touch with his past, deal with it and find new ways of doing things especially in positive disciplining of learners. The teacher will embrace positive discipline approaches.

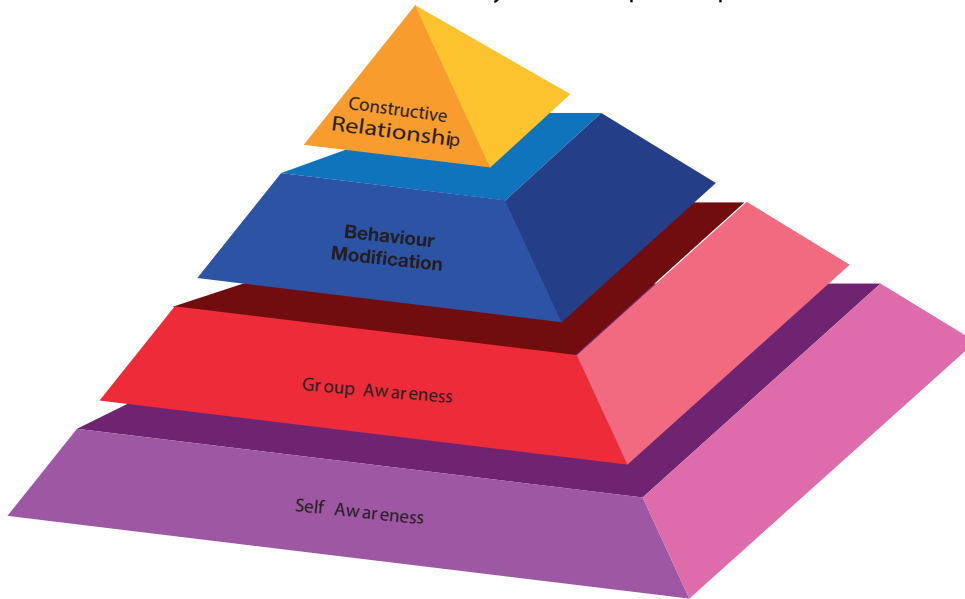
The fundamental questions to look into self-awareness

Who am I?	What am I?
• Attitudes towards myself and others? • Attitudes and beliefs towards certain situations? • Strengths • Weakness • Likes and dislikes • Goes beyond names, marital status and profession	• Profession • Values • Religious affiliations
Where am I going?	How am I getting there?
• Future plans • Future goals	• Resources (personal skills, competencies, experience, financial resources and external resources)

A teacher who embraces the fundamental attributes as stated in the table above will be more inclined to apply positive discipline approaches when handling learners. Consequently, the learners exhibit adaptive behaviour.

The Self-awareness Pyramid

A teacher with a deep sense of awareness has control of his or her relationship with others. He is able to monitor how his attitudes and actions impact on his learners and others. This awareness and self control enables him to shape his behaviour in a way that will positively impact on his learners and others. This leads to constructive and healthy relationships as depicted below:



The teacher factor in understanding children behaviour

The following factors are important for the teacher to know and understand in order to improve his/her relationship with learners.

- Teacher's self-awareness assessment - review past experiences as a child and a learner in relation to developmental stages and personality.
- Professional competence - how informed is the teacher about the professional code of ethics and implications in practice and law.
- Family of origin – how impactful is the teacher's family of origin in relationship with learners.
- Other stressors – what other significant relationships and interactions impact my relationship with the learners.
- Teacher's self care - this touches on life skills for the teacher. How well does the teacher take care of him/ herself to avoid self and learner harm? Do they understand how children perceive them?
- How best would the teacher relate with learners to foster a healthy relationship for positive discipline?

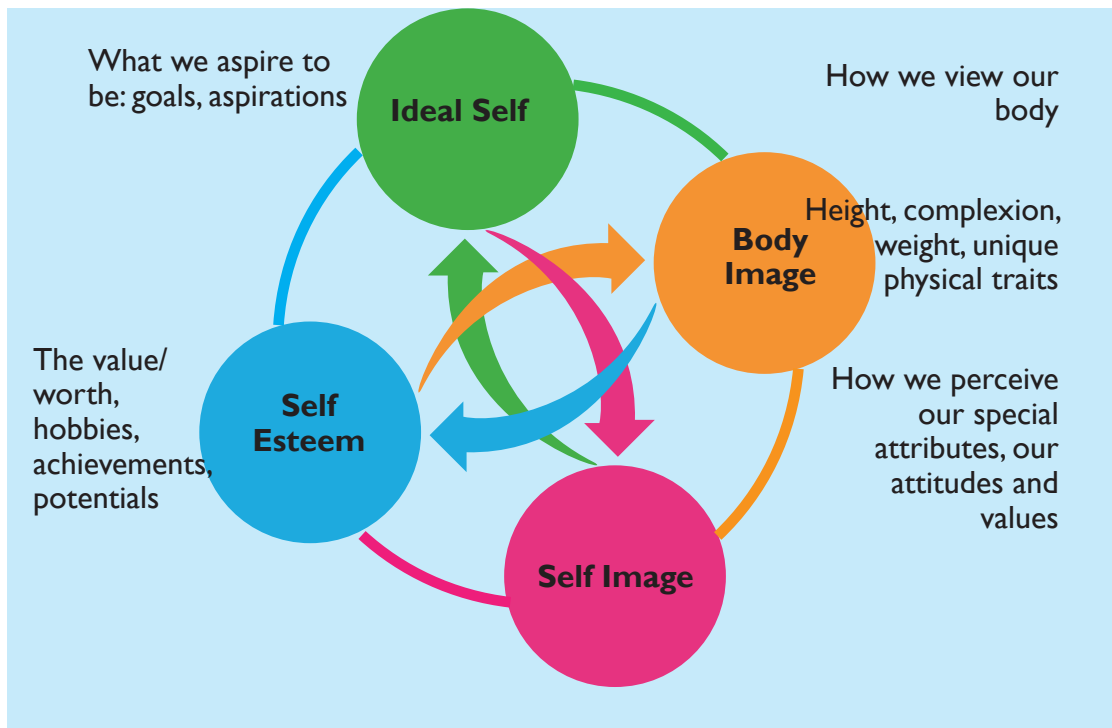
There are various ways in which a teacher can increase self-awareness. They include:

1. Self-assessment/ reflection.
2. Evaluation tools.
3. Receiving and working on feedback from colleagues, learners and parents.
4. Journaling and reflecting on daily happenings that resonate around disciplining of learners.
5. Learning from life experiences.
6. Teachers can make use of psychometric tests to get an objective view of how they behave, and how they compare in outlook with others.

Self-concept as a strategy for building and sustaining healthy relationships between learners and teachers.

Every teacher needs to work towards building a positive self-concept because the way we relate with ourselves forms the basis for our relationship with others.

The Self-concept Model



A reflective question: *How does your self-concept promote or hinder the application of positive discipline approaches?*

A teacher who accepts and loves his/her body walks tall with confidence and in turn appreciates his learners. However, a teacher with a negative body image may be ill at ease, highly suspicious of his or her learners, and may sometimes ridicule the learners' body image.

A teacher who is aware and content with their values, characteristics and attitudes will be objective in his or her relationship with the learners and allow them to be. If the teacher lacks adequate awareness and ownership of his or her values, attributes and attitudes he/she is likely to be subjective in the way he/she handles learners.

A teacher who values him/herself will equally value and respect his learners. One with low self-esteem will experience difficulties appreciating and relating with the learners.

A teacher with a clear road map of his/her life will inspire hope, faith, focus, determination and commitment in his learners. But a teacher devoid of life goals or vision will most likely be a source of discouragement to his/her learners.

Conclusion

Teachers, therefore, need to progressively work towards increased self-awareness and positive self-concept. This way, they will be able to cultivate positive relationships with their learners and easily embrace non-violent and positive approaches to discipline.

Other strategies to build and sustain healthy teacher/learner relationships include:

- Provision of warmth and unconditional positive regard by teachers to learners.
- Accepting the learners for who they are regardless of their weakness, background, religious affiliation, economic status and special needs.
- By being fair and firm to learners in administration of discipline, responsibilities and tasks.
- By ensuring the learner has a sense of belonging at home and in school.
- By offering emotional, psychological and physical security.

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UNIT 3: CHILD ABUSE

Keywords:

Child Abuse: Physical, Sexual, Verbal and Emotional

Introduction

Child abuse takes place when a parent, caregiver or any other person whether through action or failing to act causes injury, death, emotional harm or risk of serious harm to a child.

The findings from a 2012 national survey conducted by the Department of Children's Services in partnership with UNICEF indicated that among 18 to 24 year old females 76 percent experienced at least one type of abuse (sexual, physical or emotional) in their childhood. Nearly 80 percent of 18 to 24 year old males were found to have experienced one type of abuse prior to the ages of 18 (UNICEF, GOK 12). Child abuse and neglect affects all sectors and levels of society. Various factors often contribute to child abuse. These include: discrimination on any grounds, alcohol and substance abuse, lack of parenting skills, poverty and domestic violence.



Unit Objectives



Forms of Child Abuse

Child abuse often happens owing to an existing power imbalance between a child (victim) and a child or adult (abuser). Child abuse takes various forms as discussed below.

Physical Abuse: This occurs when force is used to cause bodily harm by someone against another. It involves inflicting pain, injury or harm on the child.

Psychological/Emotional Abuse: Emotional abuse occurs when someone says or does something to make a learner feel degraded, stupid or worthless. This destroys the learner's self-esteem. Emotional abuse is the most difficult form of child abuse to verify. It includes both verbal assaults and the withholding of positive emotional support. Although the scars may not be visible, emotional abuse wounds the spirit, leaving its marks for a lifetime.

Victims of emotional abuse are "hit" every day with the power of words which are demeaning, shaming, threatening, blaming, intimidating, unfairly critical or sarcastic in nature. This form of abuse is destructive to a child's self-confidence and self-esteem. It can affect a child's emotional development, resulting in a sense of worthlessness and inadequacy.

Psychological abuse occurs when someone uses threats and causes fear in an individual to gain control. It usually leads to the person experiencing negative emotions. The two types of abuses are quite intertwined.

Sexual Abuse: Sexual abuse occurs when someone forcefully uses another for sexual gratification. It should be noted that children cannot legally consent to sexual activities.

Neglect: This happens when a person is denied or is unable to access basic needs that he/she needs for survival. These include: food, shelter, clothing, water, education, health care, emotional and family support. A child who suffers neglect is often forced to fend for themselves even in instances where they may not be adequately prepared.

Exploitation: This refers to the use of another person for self-gain at the expense of the victim's wellbeing. Forms of exploitation include: child labor, exposure to drugs (as a consumer or peddler), child trafficking and sexual exploitation, among others.

Examples of Child Abuse

PHYSICAL

- Using physical force which results in pain and discomfort. These include: hitting, pinching, hair-pulling, arm-twisting, kneeling, strangling, burning, stabbing, punching, pushing, slapping, beating, shoving, kicking, choking, biting, force-feeding, or any other rough treatment.
- Assault with a weapon or other object.
- Threats with a weapon or object.
- Tying the learner to a bed or chair.
- Severe body injuries that may lead to death.

SEXUAL

- Touching in a sexual manner such as: kissing, grabbing, caressing, and fondling.
- Sexual intercourse .
- Engaging learners to perform sexual acts that may be degrading or painful.
- Exposing learners to pornographic material; viewing, participation in pornographic filming.
- Exhibitionism.
- Making sexual comments or jokes.
- Engaging children in prostitution.
- Allegations of promiscuity.
- Exposing the learner to HIV-AIDS or other sexually transmitted infections.

PSYCHOLOGICAL/EMOTIONAL

- Name calling.
- Shameful and humiliating punishment.
- Threats of abuse.
- Destruction of learner's property.
- Verbal aggression.
- Socially isolating the learner from activities such as participation in class and co-curricular activities.
- When a teacher chooses to act in a manner to assume that a certain learner does not exist, using silent treatment/ cold war.
- Denying learners contact with family and friends.
- Destroying learners' personal possessions.
- Humiliating or making fun of the learner.
- Expressing negative expectations.
- Expressing distrust.
- Yelling.

Signs and Symptoms of an Abused Child

The signs and symptoms of child abuse can be behavioural, physical, psychological, and even medical in nature. A child who is being abused often feels guilty, ashamed or confused. He or she may be afraid to tell anyone about the abuse. This is especially so if the abuser is a person in authority or a significant other in the life of the child. That person can be a teacher, parent, and other relative or family friend. Children who experience abuse often develop apparent fear of teachers, parents, adult caregivers or family friends. As the caregiver you need to be careful not to misinterpret this behaviour for indiscipline cases. Below are both behavioural and physical signs and symptoms of various abuses that children may suffer.

Types	Physical/Medical Signs and Symptoms	Behavioural Signs and Symptoms
Physical/ Corporal Punishment	• Untreated medical problems like bruises and fractures. • Unexplained injuries, especially those located on parts of the body not usually affected by normal childhood activities. These include: eyes, mouth, back, thighs, buttocks, genital areas, and such others. • Injuries such as bruises, welts or burns; especially those where the shape of an object like an electric cord, hair brush, belt, buckle, board, and cigarette is visible. • Poorly healed bones, fractures or dislocations.	• Absence from school/truancy • Over compliant behaviour or submissiveness. • Frequently running away from school or home. • General fear of adults. • Fear of returning home or of parents being contacted. • Deterioration in academic performance. • Aggression, resentment, violent behaviour.
Psychological/ Emotional Abuse	Stress related symptoms such as; headaches or stomachaches with no medical cause.	• Avoidance of certain situations, activities and places such as refusing to go to school or ride the bus. • Desperately seeks affection and attention. • Refusal to speak • Eating disorders such as overeating or lack of appetite. • Bed wetting. • Loss of self-confidence or self-esteem. • Depression. • Acute anger. • Delayed or inappropriate emotional development.

Types	Physical/Medical Signs and Symptoms	Behavioural Signs and Symptoms
Psychological/ Emotional Abuse (continued...)		• Withdrawal from friends (social isolation). • Anxiety, depression. • Dissociation. • Difficulty concentrating. • Academic problems/poor school performance. • Withdrawal or difficulty connecting with others. • Flashbacks. • Increased hyper vigilance. • Aggressive or violent behaviour. • Alcohol and substance abuse. • Sleeping disorders such as insomnia or nightmares. • Apprehension or unnatural fear. • Self-harm behaviour such as attempt to commit suicide.
Sexual Abuse	• Pain or itching in the genital area, bruises or bleeding in the external genital area and broken hymen in females. • Lax anal muscles in case of sodomy. • Torn, stained or bloody clothing/ blood in the child's underwear. • Difficulty in walking or sitting. • Sexual behaviour or knowledge that is inappropriate for the child's age. • Pregnancy. • Sexually transmitted infections (STIs). • Confession that he or she was sexually abused. • Poor hygiene/unkempt.	• Anger, anxiety and tearfulness. • Promiscuity (especially in older children). • Withdrawal from friends. • Aggressiveness. • Possession of unexplained gift and monies. • Depression.

Case Studies

CASE STUDY 1

Chebet (not real name) was a 12 year old girl in Bamboni Primary School. On this particular day, Chebet did not complete her homework. When the English teacher, Mr. Mwaka came to class, he instructed those who had not completed homework to remain behind after classes. Chebet and two other girls remained behind as instructed. The teacher then started pinching their thighs.

When Chebet resisted she was ordered to follow the teacher to the staff room where he started telling her that she was beautiful as he touched her breasts. Chebet became very furious and told the teacher that she would report him to the school administration and her parents. Mr Mwaka told her that if she reported the matter, he would break her legs and that she will never walk again. That day Chebet went home feeling disoriented, wondering if she would report the matter or not.

Upon arriving home, Chebet met her mother outside the house playing with her little sister. As opposed to the norm where Chebet would join in the play, she just passed them and headed to her bedroom. When her mother noted that Chebet had been long in the bedroom, she went to check on her only to find her crying in her bed. When she inquired, Chebet said she was okay.

Weeks passed by, but it was noticeable in school that Chebet no longer enjoyed playing with her friends as she used to. Most of the time in class she was inactive and absent-minded, unlike before. She rarely spoke and during breaks, as she preferred to remain alone in the classroom. During English lessons, Chebet was in fear, always looking down and not participating.

Activity: *From the above case study; identify types, symptoms and effects of abuse presenting through the stories.*

CASE STUDY 2

Juma was a Standard Six pupil in Majaliwa Primary School. He had big brown eyes that sparkled with mischief, intelligence and was very confident. During my first days in class he was quiet and cooperative. However, when the head teacher came to my classroom, he enquired about Juma's behaviour and warned me that he had many problems with many teachers in the past. When I remarked on his good behaviour and said that I enjoyed his sense of humour, and sharp wit, his skepticism was obvious.

I soon noticed that if Juma's name came up when I chatted with seasoned teachers in the school. They consistently responded with "Ohh—that kid," or "Ohh—him". It had been obvious to me from the start that Juma had been labeled a hopeless trouble maker. When I eventually asked how best to maintain a productive relationship with him, I was told that "I can't save them all" and that I should simply try to help him to pass Class Eight, so that he can move on from us and become a problem of the secondary school he would join. Over the time, after noticing how most teachers were treating him with suspicion, Juma became a dull boy and was withdrawn.

Lesson

From the case study above, Juma suffered emotional abuse as a result of being labeled a trouble maker by his teachers. It is also obvious that the teachers had given up on him and were not willing to support him to become productive. This was likely to make Juma lose self-esteem and confidence. He might even act out as a self-fulfilling prophesy as he had been repeatedly told he was a trouble maker who can not do anything right.

Note: When a teacher displays positive characteristics while dealing with learners he is more likely to get cooperation, respect and obedience from learners.

CASE STUDY 3

Discouraging statements made by teachers to their students

- You have no hope in your life.
- Your parents should have invested money more wisely than paying your fees.
- Your brains put together cannot equal my small finger.
- You have a big, but empty head.

These kind of statements constitute verbal abuse and can damage a child’s self-esteem. This may discourage the learner from putting effort to work hard and finally end up miserable in life.

Exercise: Characteristics of teachers who impacted on you positively or negatively

During the course of your school life, there are teachers who impacted on you positively; while others impacted on you negatively. In the table below, write down the characteristics of both categories of teachers.

Positive	Negative

Reflection:

1. Do you endeavor in your day-to-day dealing with learners to display the same positive characteristics?
2. How can you avoid the negative characteristics you have listed above, while dealing with learners?

Risk Factors that Contribute to Child Abuse

Some of the risk factors that contribute to child abuse include:

1. Very high expectations of the child, and what the child should achieve.
2. Emotional state of the teacher.
 - The teacher's past experiences in life; they may have been abused as a child and their background.
 - A lack of knowledge and skills in managing behaviour of children under their mandated areas.
 - Low self-esteem and self confidence.
 - Depression.
 - Alcohol and/or drug abuse.
 - Mental or physical ill health. Work pressures.
 - Acceptance of the use of abuse and force.
 - Acceptance of physical punishment of children.
 - Undesirable characteristics of the child: examples of this are hyperactivity and challenges the teachers' instructions.

Effects Child of Abuse

Abuse robs children of the opportunity to develop healthy and trusting relationships with adults. This highly contributes to low self-esteem, and impairs healthy psycho-social development. Indeed, the effects of childhood abuse often last a lifetime.

The effects of abuse affect each child differently. While the effects of abuse can be severe and long-lasting, children who have been abused or exposed to violence can, and do go on to have healthy and productive childhoods and adult lives. Children are resilient, and being able to discuss and guide our children through a recovery process is crucial to their success. It is often the first step towards healing. In most cases, once their safety is assured, children can overcome the effects of trauma through professional counselling or other supportive interventions.

Physical Effects of Child Abuse

As the effectiveness of corporal punishment decreases with use; so does its severity increase systematically. As parents and teachers become desensitised to what they are doing and frustrated by the diminishing returns, they move from light slaps to hard blows.

As a result, children may suffer injuries arising from corporal punishment that need medical attention, leave permanent damage and can cause death.

Psychological Effects of Child Abuse

Children who are physically punished suffer harmful psychological consequences both in the long and short term. These include; stress and depression. The strongest, usually unintended, message that corporal punishment send to the minds of the child is that violence is acceptable behaviour. Children who are oftenly beaten get the impression that it is all right for a stronger person to use force to coerce a weaker one. Thus, a major consequence of corporal punishment in childhood is aggression, criminal and anti-social behaviour in later adulthood.

Physical punishment can affect the child's overall development progress. This can result in educational as well as social, inter-personal and psychological adjustment problems. These include:

Insecurity and anger

Deliberately inflicted pain can lead to fear, anxiety, insecurity and anger in a child. This erodes the parent-child or teacher-child relationship. He or she learns to avoid the parent.

Erodes Trust

Corporal punishment erodes a child's basic trust, stimulates mistrust, anger and resentment. It also undermines the teacher's ability to interpret a pupil's basic needs and to provide an environment of mutual trust conducive to learning.

Stifles initiative and critical thinking

Corporal punishment slows the development of a child's feeling of autonomy and produces some degree of shame and doubt. They feel humiliated, and this hinders them from achieving some degree of initiative.

Hardening/inability to connect feelings with emotions

Children who are regularly treated with excessive punishments learn to become immune to pain. In the process of learning to harden themselves against pain, they become a little less human. They learn to shut off their emotions and become more mechanical beings.

Behavioural Effects of Child Abuse

School drop out

Because of fear of corporal punishment learners drop out of school while others have to transfer to different schools.

Weakened internal motive to comply

If compliance is controlled by physical punishment, the child's internal motivation to comply when the punisher is absent is weakened.

Impaired parent-child relationship

Even at two years of age, children who are physically punished are more likely to distance themselves from their parents than those who are not physically punished.

Impaired parent-child communication

An adolescent or youth with an earlier experience of corporal punishment would be less likely to turn to his parents for advice.

Weakened ability to internalise morals

Children who receive physical punishment are less likely to internalise moral values than children who are not physically punished. In addition, children who get spanked regularly are more likely over time to cheat or lie, be disobedient in school, bully others and show less remorse for wrongdoing.

Reinforces a stereotypical pattern

Physical punishment condones violence as an acceptable method of dealing with problems and reinforces stereotypical pattern of the strong versus the weak.

Self Assessment

For the following statement scenarios, kindly tick where appropriate.

Statement	Strongly disagree (1)	Disagree (2)	Neutral (3)	Agree (4)	Strongly agree (5)
When presented with scenarios of child abuse, I am able to classify them into appropriate forms of child abuse					
Destruction of learner's property is not a type of child abuse					
Teachers' past negative experiences can influence them to abuse children					
Frequently running away from school or home and general fear of adults are not symptoms of abused children					
Stifled initiative/critical thinking and inability to connect with feelings and emotions are not effects of child abuse					

Feedback

If you scored 10 and above it shows you have clearly understood the unit on child abuse. If you have scored below 10 you need to revisit the unit.

Application questions for the Unit

List and categorise forms of child abuse in your school	
Child abuse	Form

Reflect and identify a case of child abuse you witnessed, in relation to each case.

1. What do you think were possible causes of this abuse?
2. What symptoms led you to conclude that this is a case of child abuse? Categorise them into behavioural, physical and emotional symptoms.
3. What were the effects of this abuse on the child?

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UNIT 4: LEGAL AND POLICY INSTRUMENTS/ FRAMEWORK ON CHILD PROTECTION

Key Words:

Legal, Law, Convention, Charter, Constitution, Act, Policy, Circular, Article, Section, Offence, Penalty, Sentence and Conviction.

Introduction

The world has recognised that boys and girls are subjected to various forms of abuse at the school and community levels. Kenya has made steady strides in ratifying and enacting legal instruments for child protection in schools. The laws and policies provide for elimination of all forms of abuse including corporal punishment and other forms of humiliating punishments in the course of instilling discipline. This unit looks at the legal instruments providing for safety and protection of children. It further explores the implications of breaking the law.

Unit Objective



Apply legal and policy framework on child protection

By the end of the unit, I should be able to...

Sub-units

- a) International Legal Instruments
- b) National Legal Instruments
- c) Regional Legal Instruments

International Legal Instruments

International legal instruments include: Universal Declaration of Human Rights (1948), United Nations on Convention Against Torture and Other Cruel Inhuman or Degrading Treatment or Punishment, African Charter on the Rights and Welfare of the Child, and UN Convention on Rights of the Child (UNCRC) . All these provide for the elimination of all forms of violence (refer to Unit Three).

UNCRC Article 19-1 states that: "Parties shall take all appropriate legislative, administrative, social and educational measures to protect the child from all forms of physical or mental violence, injury or abuse, neglect or negligent treatment, maltreatment or exploitation, including sexual abuse; while in the care of parent(s), legal guardian(s) or any other person who has the care of the child."

Article 23-1 states that "State Parties recognise that a mentally or physically disabled child should enjoy a full and decent life, in conditions which ensure dignity, promote self-reliance and facilitate the child's active participation in the community." For example, schools should consult and engage children in formulating their school's codes of conduct and how they will be implemented.

Article 37 of UNCRC states that "No child should be subjected to torture, cruel, inhuman or degrading treatment or punishment." This provision is domesticated in the Children's Act and the Basic Education Act. For example, asking a child to uproot a stump is cruel, and taunting a child is degrading.

"States Parties recognise that a mentally or physically disabled child should enjoy a full and decent life, in conditions which ensure dignity, promote self-reliance and facilitate the child's active participation in the community."

UNCRC article 23-1

United Nations on Convention Against Torture and Other Cruel Inhuman or Degrading Treatment or Punishment

Part I Article 1-1 states that: "For the purposes of this Convention, the term "torture" means any act by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person for such purposes as obtaining from him or a third person information or a confession, punishing him for an act he or a third person has committed or is suspected of having committed, or intimidating or coercing him or a third person, or for any reason based on discrimination of any kind, when such pain or suffering is inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity. It does not include pain or suffering arising only from, inherent in or incidental to lawful sanctions."

Part I Article 2-1 states that "Each State Party shall take effective legislative, administrative, judicial or other measures to prevent acts of torture in any territory under its jurisdiction."

Part I Article 2-2 states that "No exceptional circumstances whatsoever, whether a state of war or a threat of war, internal political instability or any other public emergency, may be invoked as a justification of torture."

Part I Article 2-3 of this Convention states that “An order from a superior officer or a public authority may not be invoked as a justification of torture.”

Regional Legal Instruments

Regional legal instruments include the African Charter on the Rights and Welfare of the Child and the African Charter on Human and People Rights. Article 5 of the African Charter on Human and Peoples Rights states that “Every individual shall have the right to the respect of the dignity inherent in a human being and to the recognition of his legal status. All forms of exploitation and degradation of man particularly slavery, slave trade, torture, cruel, inhuman or degrading punishment and treatment shall be prohibited.”

National Legal Instruments

The Constitution of Kenya 2010

This is the Supreme law of Kenya; any law that is inconsistent with the Constitution is null and void. Article 29 states that every person has the right to freedom and security. This includes the right not to be:

- Subjected to any form of violence from either public or private sources,
- Subjected to torture in any manner, whether physical or psychological,
- Subjected to corporal punishment,
- Treated or punished in a cruel, inhuman or degrading manner.

These provisions too, apply to children, teachers and the school context.

The Children Act 2001 (Cap. 586, Laws of Kenya)

This Act domesticates the international and regional instruments, as well as the constitution on matters related to children. Section 18 (1) No child shall be subjected to torture, of cruel treatment or punishment, unlawful arrest or deprivation of liberty. (2) Notwithstanding the provisions of any other law, no child shall be subjected to capital punishment or to life imprisonment.

Article 53 (1) states that every child has the right, in terms of children rights and protection;

- a) To a name and nationality from birth;
- b) To free and compulsory basic education;
- c) To basic nutrition, shelter and health care;
- d) To be protected from abuse, neglect, harmful cultural practices, all forms of violence, inhuman treatment and punishment, and hazardous or exploitative labour.

Section 18 (1) No child shall be subjected to torture, of cruel treatment or punishment, unlawful arrest or liberty, deprivation of liberty.

Section 20. Notwithstanding penalties contained in any other law, where any person wilfully or as a consequence of culpable negligence infringes any of the rights of a child as specified in Sections 5 to 19, such person shall be liable upon summary conviction to a term of imprisonment not exceeding 12 months, or to a fine not exceeding fifty thousand shillings or to both such imprisonment and fine.

Sexual Offenses Act 2006

This Act defines and criminalises all sexual engagements with children and its very specific on teachers as in section 24(4) which states that:

Any person who being the head-teacher, teacher or employee in a primary or secondary school or special institution of learning whether formal or informal, takes advantage of his or her official position and induces or seduces a pupil or student to have sexual intercourse with him or her, or commits any other offence under this Act, such sexual intercourse not amounting to the offence of rape or defilement, shall be guilty of an offence of abuse of position of authority and shall be liable upon conviction to imprisonment for a term of not less than 10 years. If the offence is found to be defilement the following are the penalties:

- 1) Below 11 years - Life imprisonment.
- 2) Between 12 and 15 years - not less than 20 years.
- 3) Between 16-18 years - not less than 15 years.

Under this Act, any person who commits an act which causes penetration with a child is guilty of an offence termed as defilement.

Basic Education Act 2013

Section 4(P) provides for values and principles that shall guide basic education, which include protection of children against all forms of discrimination and abuse.

Part IV – Free and Compulsory Basic Education

Section. 34 provides that a child shall not be denied admission as a form of discipline.

Section.35 (1) Pupils shall be given appropriate incentives to learn and complete basic education. (2) No pupil admitted in a school, subject to subsection (3) shall be held back in any class or expelled from school. (3) Subject to subsection (1) the Cabinet Secretary may make regulations to prescribe expulsion or the discipline of a delinquent pupil for whom all other 2013 Basic Education No. 14 241 corrective measures have been exhausted and only after such child and parent or guardian have been afforded an

Any person who being the head-teacher, teacher or employee in a primary or secondary school or special institution of learning whether formal or informal, takes advantage of his or her official position and induces or seduces a pupil or student to have sexual intercourse with him or her, or commits any other offence under this Act, such sexual intercourse not amounting to the offence of rape or defilement, shall be guilty of an offence of abuse of position of authority and shall be liable upon conviction to imprisonment for a term of not less than 10 years.

opportunity of being heard: Provided that such a pupil shall be admitted to an institution that focuses on correction in the context of education.

Section 36. (1) No pupil shall be subjected to torture and cruel, inhuman or degrading treatment or punishment, in any manner, whether physical or psychological. (2) A person who contravenes the provisions of the sub section (1) commits an offence and shall be liable on conviction to fine not exceeding one hundred thousand shillings or to imprisonment not exceeding six months or both.

Teachers Service Commission (TSC) Act 2012

It states that the Teachers Service Commission shall take all necessary steps to ensure that persons in the teaching service comply with the teaching standards prescribed by the Commission under this Act. Under section 30 (c) and (d) the commission shall deregister a teacher who has been convicted of sexual offence or an offence against a pupil, and who has been convicted of a criminal offence which, in the opinion of the commission, renders the person unfit to be a teacher.

33(1) The Commission may, subject to the regulations made under this Act, take disciplinary action against any person registered as a teacher under this Act. Reinstatement of name in the register and publication of that register.

(2) Subject to subsection (1), the discipline of teachers not in the employment of the Commission shall be limited to offences leading to removal from the register of teachers.

Teachers Service Commission (TSC) Code of Conduct and Ethics

The Code is intended to establish standards of ethical conduct and behavior for teachers so as to maintain the integrity, dignity and nobility of the teaching profession. The Code stipulates standards of behavior and ethics to be observed by teachers at all times.

Teachers have a Duty to Protect Children

9(1) A teacher shall be entrusted with the duty of care of a child, including a child with special needs and shall ensure the child is protected from abuse, neglect, harmful cultural practices, all forms of violence, discrimination, inhuman treatment, corporal punishment and exposure to hazardous or exploitative labour.

Teachers Service Commission (TSC) Code of Regulations for Teachers

The Commission is committed to promoting professionalism and integrity in the teaching service. In reference to discipline the code of regulations outlines offences for which teachers may be disciplined. It also establishes the mechanisms for effecting disciplinary action, the discipline procedure and decisions that may be arrived at in accordance with Article 237 (2) (e) of the of the Constitution of Kenya and Section 34 of the Act.

Teachers Service Commission (TSC)/ Circular No 3/2010

Pursuant to the enactment of the Sexual Offences Act (2006), and in accordance with the professional ethics espoused in the TSC Code of Regulations, the Commission issued a TSC/Circular No.3/2010 on protecting a child, whereby if any of what is in it is committed then the teacher is automatically dismissed and deregistered,

It states that: "Sexual abuse by a teacher to a pupil/student shall include sexual intercourse, sexual assault, touching of a pupil/student's body which is of a sexual nature, any suggestive language or gesture, any form of inducement, threats or violence to force them to engage in sexual intercourse,

exposing pornographic material or any form of flirtation with or without consent”.

No teacher shall induce, coerce, threaten or intimidate a pupil/student in any way and particularly, in regard to their academic performance, in order to have sexual relations with that pupil/student.

Legal Notice No. 56 of 2001

Government of Kenya banned corporal punishment of children in schools on 13th March, 2001 through legal notice number 56.

The Penal Code Cap63 Laws of Kenya

The Penal system in Kenya outlines criminal offences and prescribes penalties to them. It is important for teachers to note that most of the discipline methods amount to criminal offences. These include:

- Sexual abuse: Offences outlined in the Penal Code- Rape, Defilement, indecent assault, incest (both by males and females) and unnatural offences.
- Physical Abuse: Offences include common assault, assault occasioning actual bodily harm and grievous bodily harm.
- Other offences that protect the lives of children include: concealment of birth, killing of the unborn, procurement of an abortion; and such others.

Common Child Protection Offences

Section 250: Common assault. Any person who unlawfully assaults another is guilty of misdemeanor. If the assault is not committed in circumstance for which greater punishment is provided in this code, is liable for imprisonment for one year.

Section 251: Assault causing bodily harm. Any person who commits an assault occasioning actual bodily harm is guilty of a misdemeanor and is liable for imprisonment for five years.

“Sexual abuse by a teacher to a pupil/student shall include sexual intercourse, sexual assault, touching of a pupil/student’s body which is of a sexual nature, any suggestive language or gesture, any form of inducement, threats or violence to force them to engage in sexual intercourse, exposing pornographic material or any form of flirtation with or without consent”

TSC/Circular No.3/2010

Child Participation Guidelines

The Child Participation Guidelines, 2006, spell out ways of involving children in decision making on

matters that affect their lives and to express their views in accordance with their involving capabilities.

Reflection questions

1. What have I done as a teacher to actualise the provisions of the laws, in regard to upholding children rights while in school?
2. What discipline methods do I need to change, in light of the law?

Conclusion

These laws seek to protect all children in every situation they are in. They apply to school going children, as well. Teachers are bound to uphold the rights of children while they are in school. The law gives school teachers the legal capacity as guardians and they are under duty to protect all learners. It is important to note that there is no exemption of teachers in the application of the law and noncompliance is an offence. Hence, a teacher should at all times practice positive discipline that does not infringe on the law and the rights of the child.

Case law: There are many instances where teachers have been charged in court for assault of their students. An example is Criminal Case No. 502 of 2001 Naivasha (Criminal Appeal No. 221 of 2001 Nakuru) where a teacher was sentenced to 2 years in prison or a fine of Sh80,000 for caning a student and causing grievous bodily harm. The teacher was also dismissed from employment.

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UNIT 5: POSITIVE DISCIPLINE

Keywords:

Discipline, Punishment, Positive Discipline

Introduction

The desire of every teacher is to produce a well behaved child, who is able to adjust well to the set norms and regulations in the school and society at large. However, children will not always behave in conventionally acceptable ways. As a teacher, managing the behaviour of learners is critical in fostering positive relations and delivery of educational goals. Since the banning of corporal punishment as a discipline approach, learning institutions have been in a dilemma on how to manage discipline and ensure holistic development of the child.

This unit aims at guiding teachers to foster positive relations with learners, and to understand the difference between punishment and discipline and the implications of each. Positive discipline calls for a change of attitude in the teacher. It begins with acceptance that some conventional methods of dealing with behaviour are not as effective; and that it is possible to achieve better results using other methods.



Unit Objectives

1 Distinguish the difference between punishment and discipline

2 Practice positive strategies in guiding children's behaviour

By the end of the unit, I should be able to...

Sub-units

- Understanding the difference between discipline and punishment
- Case studies/Scenario: Shifting from punishment to discipline
- Positive discipline strategies explained
- Adapting the Wheel of Choice: A problem solving programme
- Common justifications for punishment

Understanding the Difference between Punishment and Discipline

What is punishment?

This is the authoritative imposition of something undesirable or unpleasant upon an individual or a group in response to behaviour that is deemed unacceptable. The effects of punishment are very detrimental to a child’s wellbeing.

What is discipline?

It is imparting knowledge and skills to children on expectations, guidelines, standards and principles. Discipline focuses on teaching children how to acquire self-respect, pride in their own integrity and sensitivity to others. This way, they can observe and live the norms of good conduct even without supervision.

Is there any difference between punishment and discipline?

Discipline and punishment are two concepts that have been used interchangeably aimed at behaviour modification processes. However, the process and the result are distinctively different.

The chart below presents an analysis of this difference.

Categories	Discipline	Punishment
Process	Enhances self-control by explaining reason.	Behaviour is determined by external controls rather than self-control.
	Focuses on underlying issues and motivations behind the behaviour.	Focuses on the observable actions or non-actions, without considering what could have led to the actions.
	It is restorative - focuses on restoring relationships.	Punishment is retributive, and seeks to make the learner pay back for their mistakes.
Results	Instils positive values such as honesty, responsibility, accountability for actions, and such others.	Inflicts physical pain.
	Raises self-esteem, leaving the child feeling good about him/herself.	Lowers self-esteem, and this leaves the child feeling bad about him/herself.
Effects	Motivates and encourages the learner to do better next time. The pupils get to be more responsible and accountable for their actions.	Provokes anger, resentment, rebellion, revenge, aggression or withdrawal.
	Decreases power struggles between the teacher and learner.	Increases power struggles between teacher and learner.

Shifting from Punishment to Positive Discipline

Positive discipline begins with a paradigm shift from the conventionally acceptable forms of discipline. For instance, it entails a move from caning and other forms of corporal punishment to approaches that focus on equipping learners with essential psychosocial skills and enhancing teacher-learner relationships. This shift requires that a teacher takes a moment for self-evaluation in order to challenge their current beliefs and practices in handling discipline.

The table below identifies common sets of behaviour in learning institutions and possible reactions by teachers. It also suggests a positive approach to the same behaviour.

Case study	What the teacher may assume	How the teacher may react	Positive discipline approach
Scenario 1 Jane is 9 years old and in Class Three. She struggles to finish her homework often, and constantly lies to her parents that she was not given any homework. She then tells the teacher that she had too much housework.	Jane is viewed by her teacher as lazy, and a liar.	The teacher constantly canes Jane, or asks her to kneel down during the entire lesson.	Child could be struggling with learning or understanding some aspects of the curriculum. She could also be having a lot of responsibilities at home, hence unable to balance these with school expectations. - Find out what the problem could be with her learning progress and provide necessary support. - Teach the child time management. For instance, she can do the homework in school between class period, and during the long breaks. - Work with the parent. This entails free flow of communication between parent and teacher to support the child.

Case study	What the teacher may assume	How the teacher may react	Positive discipline approach
Scenario 2 John is 10 years old and in Class Four. He is always the one starting fights and conflicts among his classmates	He is labeled a bully.	The teacher often canes John, or scolds at him whenever such conflicts occur.	John's case is most likely attention seeking - Assign the child responsibility of care to others to redirect his negative energy to something constructive. - Reinforce/appreciate their positive contribution. - Set time to communicate with the child to explore the attention seeking behaviour.
Scenario 3 Mary is 15 years old and in Form Two. She has redesigned her skirt to fit very tightly, which is against the school dress code.	She is labeled as rude, and is deemed to have violated the school dress code.	Teacher beats up Mary, and abuses her using negative names. Sometimes, teacher punishes her for an entire day. She is also isolated from her classmates.	This is a struggle to assert personality, define individuality, and most likely, rebellion from structure and expected norms. - Retract and do not engage the girl at that moment and allow time to cool off. - Have a discussion on school dress code and why it exists. - Help her to understand systems and structures required for harmony - Help the girl understand that every action has consequences, and therefore ask the girl to correct the skirt to the acceptable size - Assign her a responsibility in the school. Encourage her to join extra curricular activities that can help her define and develop talents, and a positive personality.

Case study	What the teacher may assume	How the teacher may react	Positive discipline approach
Scenario 4 Peter is 13 years old, and in Form One. His parents have recently separated and father has left the home. Peter while in school is defiant, especially when given instructions by a particular male teacher.	Teacher thinks Peter is stubborn, rude and disrespectful.	Peter is caned often by this teacher. He is punished, isolated and at times, suspended.	This is most likely a case of projection due to the loss of his father. Hence, Peter is acting out the feelings of hurt due to father leaving them. - Engage the child to explore the issues causing the defiance. - Refer for professional management.

Case Study Scenarios in Analysis above Explained

Scenario 1: This could be lack of understanding of the learning content, or a learning disorder that slows the pupil's learning progress. The behaviour is a coping mechanism to avoid possible consequences of incomplete work. This, coupled with too much housework, results into feelings of too much pressure to perform and the child begins to lie to cover up the inadequacies.

Scenario 2: This is attention seeking. A child feels that they have been denied attention and craves for it. Such a child wants to be affirmed, noticed, and accorded responsibility.

Scenario 3: This is a struggle with authority, structure and rules, which often conflicts with the exploration of individuality and need to assert personality. It is very common among adolescents and teenagers. This most often is interpreted as challenging authority and school management responds with extreme force. The child could have very strong leadership potential or talents that could be channeled to positive assertion of individuality. Teachers need to exercise extreme levels of maturity and restraint in a situation like this.

Scenario 4: This is revenge for a situation the child is going through which could be traumatic and needs professional help.

Positive Discipline Approaches Explained

Understand the meaning behind the behaviour – Every behaviour is purpose driven. The most important thing teachers should keep in mind is that before labeling children as bad, there is need to find out why the child is doing what they are doing. Once the root cause of the behaviour is identified, then focus should be on addressing it.

Focus in controlling yourself, not the learner – Positive discipline requires that teachers model the types of behaviour they want the learners to emulate. In the case of an extreme emotional flare-up, count to 10, taking a deep breath or simply walk away until you have had time to recollect yourself and cool off. This will provide a clear mind to analyse the situation and communicate with the child effectively.

Talk in a way that students can listen to you - Refrain from shouting or criticising. Instead, provide a platform for engagement to explore the problem and possible solutions with the learner.

Active listening - Listen in order to understand the situation, but not to give a quick solution, attack, shame the child or defend yourself.

Use the win-win method - This is a problem-solving approach where neither the teacher nor learner is the absolute winner or loser; but everybody is a winner. In its application, the teacher becomes a winner for winning the pupils confidence and changing the child's actions. The child is also a winner because they have realised their mistake and have changed. This minimises any chance of the undesirable behaviour being repeated.

Class meetings - A teacher needs to involve the learners where expectations for behaviour are agreed upon. This ensures that rules are discussed and consequences agreed upon.

Be consistent with your expectations- Never overlook/ignore a certain negative behaviour in the hope that it will pass or might never be repeated. If misbehaviour occurs remind the learners of earlier agreements and address the issue as appropriate.

Catch a child doing right! - Give attention to the positive behaviour in a child, and not the negative. This will encourage them to continue doing good.

Redirect energy to more constructive behaviour - Focus on offering a positive behaviour to replace the negative behaviour. For instance, a learner who often reports late could be given time keeping responsibility. Similarly, a young student acting up by throwing away toys or play materials could be enlisted to help rearrange the teachers desk and the play corners.

Do not bribe - Trying to pacify children who could be acting with an item is very common in dealing with toddlers. This only reinforces the undesired behaviour. Instead, let the tantrum continue and cool off (ensure there are no objects that may hurt the child) and redirect the child to do the desirable behaviour. Identify the activity the child likes/enjoys to do and encourage this with words of praise.

Trust your students - Learners resent unrealistic restrictions and struggle against them. It is possible to allow certain freedoms and still have discipline remain consistently good. When learners are accorded certain freedoms or privileges, they engage a positive frame of mind, proud to be trusted – and cannot easily be lured into wrong doing. On the contrary, denial of participation and freedom is likely to result into challenging the authority and breaking the 'bonds' through violent encounters. It would be an environment very vulnerable to incitement and student strikes.

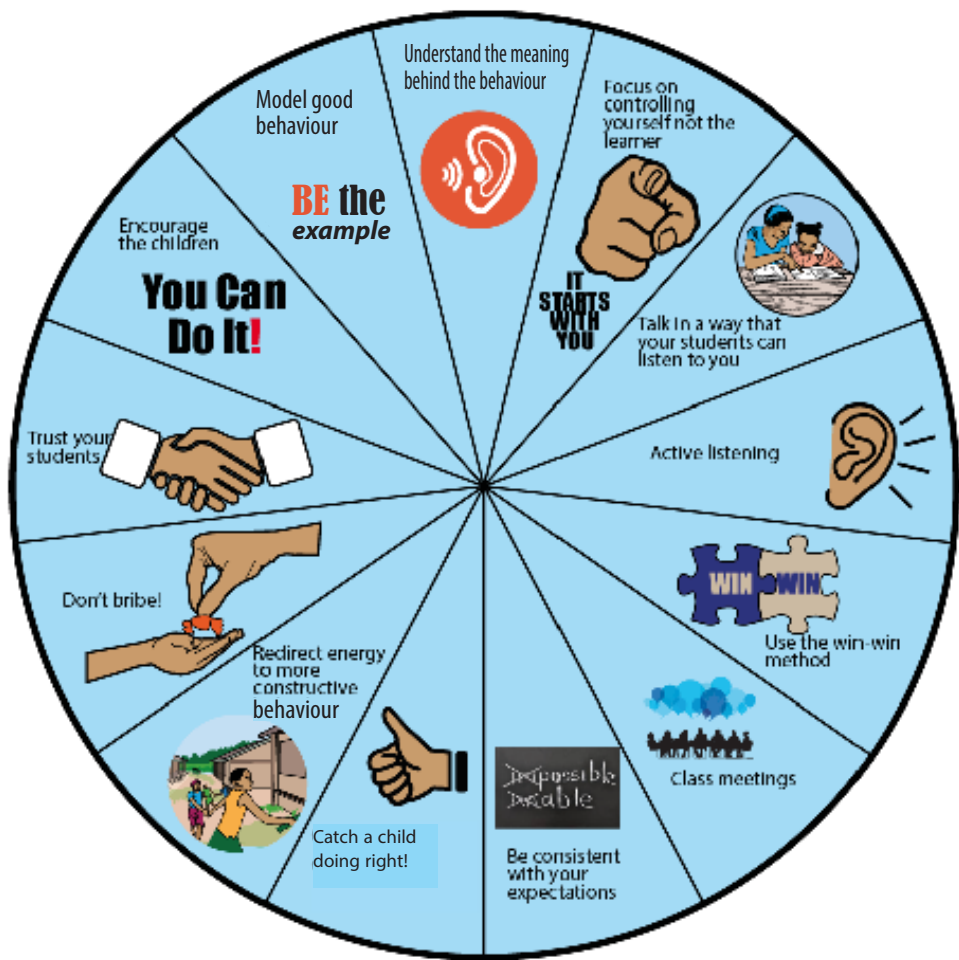
Encourage the children - seize every opportunity to encourage and affirm your learners.

Model good behaviour - A teacher who is effective at working with learners is an example of good behaviour and caring values. The importance of modeling good behaviour is rooted in the simple fact that children learn more from observing than listening. Children learn what they live.

Adapting the Wheel of Choice with Positive Discipline Strategies: A Problem Solving Programme

The Wheel of Choice is a problem-solving technique developed by Lynn Lot and Jane Nelsen to support teachers and parents. It helps them define actions that demonstrate the theme of Positive Discipline by focusing on solutions. Learners could be helped to create their own Wheel of Choice in defining engagement with others.

Below is an example of a Wheel of Choice using some of the positive discipline actions suggested in the unit. Teachers can use this to remind themselves of some of the actions they can take to resolve behaviour problems among students. They can also engage students to create more in



Common Justifications for Corporal Punishment People Say, What the Facts are

I was beaten and I turned out alright

Fact: This is a defensive argument to justify corporal punishment. It is an admission by the teacher that they were also beaten and were angry about it; but because they turned out fine, then even children should be beaten. It does not prove that being beaten was the reason for their 'turning out alright', just like there are many who were beaten and turned out wrong.

I am punishing/beating the mistake out of you

Fact: Punishment inflicts pain and instills fear on the child. This is a baseless argument which dehumanises the child and refers them as 'hosting the mistake'. The statement has the potential to make the children very indifferent, and this breaks the relationship with the teacher.

Spare the cane and spoil the child

Fact: This concept is present in most religious sectors and it is cited to justify corporal punishment. It is unfortunately taken out of context and has little or nothing to do with beating up children to correct behaviour. It would be most appropriate if stories and parables that depict correction of behaviour and acquisition of positive values and morals are used.

Children must be beaten to behave well

Fact: Being hit does not teach children to behave well, but only trains them to suppress the undesirable behaviour in the presence of the authority figure. Most often, after the beating/punishment, children continue with the undesirable behaviour in the absence of authority figures. It may also result in a mob action like a strike or destruction of property. A problem solving approach will work best because children and teachers get an opportunity to understand the cause and effect of the undesirable behaviour.

Nothing else works

Fact: Corporal punishment offers quick fixes to problems but does not address the underlying issues. Positive discipline on the other hand, empowers the child to correct the mistake. It instills responsibility and therefore the child willingly behaves in accordance with the expected norms. The rewards are long term and mutually beneficial.

I spank/beat with care, not to harm

Fact: Corporal punishment is most often an expression of anger and exhibits power over the child. It inflicts physical and psychological pain, as well as bodily harm.

Child Participation in Positive Discipline

The participation of learners is a key component of positive discipline, as it facilitates the creation of a win-win situation. Child participation is the process of children's expression and active involvement in age-appropriate decision making on matters that affect their lives.

Importance of child participation

Below are some of the benefits of child participation in enhancing positive discipline.

- Helps the learners to understand the importance of maintaining discipline in school.
- Empowers learners to make decisions that develop their life skills.
- Ensures learners' ownership of rules and regulations.
- Provides avenues for learners' growth and development.
- Helps teachers to identify key areas of interest among children.
- Inculcates democratic values among learners.
- Enhances accountability among learners and teachers.
- Empowers children to protect themselves by voicing and reporting all forms of abuse.

Avenues to encourage child participation in school

Below are the various ways to encourage child participation in class and within the school environment.

- Involve learners in the establishment of school rules and their consequences when broken; and similarly, a reward system when rules are followed.
- Enhance peer education and mentorship.
- Involve learners in the management of complaints mechanism in the school.
- Use of school clubs to model desired behaviour among children.
- Establish and support children's government and students' council in accordance with the Ministry of Education Science and Technology guidelines.
- Operationalise the provision on involvement of learners in school board of management committees (BoMs) in the Basic Education Act.
- Hold regular school barazas, class meetings and open forums.
- Make a deliberate effort to ensure learners living with disability/special needs and genders are involved in all aspects of participation.

Self Assessment: Positive Discipline

No	Question	Agree	Don't know	Disagree
1	I was beaten for making mistakes.			
2	I felt aggrieved and unloved when beaten.			
3	It was justifiable to get the beating.			
4	Spare the rod, spoil the child offers a good justification for disciplining children.			
5	I am what I am because of the beating I received.			
6	Children who are punished learn to behave better than those who are not punished.			
7	If I don't punish children, my pupils will be ill disciplined.			
8	I have a good understanding of what positive discipline means .			
9	Positive discipline means allowing children do what they want.			
10	Positive discipline dis-empowers teacher and may lead to loss of class control.			
11	Positive discipline is more time consuming and difficult to implement.			
12	As a teacher I often want to avoid canning children but, I don't know what to do.			
13	I consider it important that children talk to me about issues and seek my assistance.			
14	Children find it easy to approach me.			
15	My children (pupils/students) see me as a friend and colleague and not only as a teacher.			

Measurement interpretation

- ☒ If your answer to question 1-9 is Agree, you need to reconsider your attitude towards positive discipline.
- ☐ If your answer to question 10-12 is Agree or don't know, it is an indication that you may need to strengthen your skills in positive discipline.
- ☐ If your response to question 12-15 is Disagree, it is an indication that you need to strengthen your relationship with children as it could hamper your application of positive discipline.

Conclusion

Positive discipline calls for an investment in time and patience. It goes against traditionally acceptable 'quick fix' to problems of behaviour. It is this investment in time and holistic growth that every teacher needs to make in order to realise the national goals of Kenyan education.

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UNIT 6: SCHOOL ENVIRONMENTAL SAFETY AS A COMPONENT OF POSITIVE DISCIPLINE

Keywords: Environmental Safety, Safe Learning Environment, Unsafe Learning Environment, School Safety

Introduction

Safe and supportive learning environments are key to the prevention of disruptions to the teaching and learning set-up. Focus should be placed on promoting a positive interaction between learners and their environment. Creation of a caring and safe school culture that supports the teaching and on going reinforcement of skills will enable learners to choose and consistently demonstrate appropriate behaviour. The set-up for teaching and reinforcing these skills should be positive, nurturing and inclusionary. Unsafe learning environments can be negative, punitive and exclusionary, especially to learners with learning/physical disabilities and special needs.



Unsafe environment



Safe environment

Unit Objectives

1 Describe the term
"school safety"

2 Explain how
school safety can
enhance positive
discipline amongst
learners.

By the end of the
unit, I should be
able to...

Sub-units

- a) School safety
- b) School safety as a strategy for enhancing learners' positive discipline

School Safety

In a safe learning environment measures are undertaken by school staff, learners, parents and other stakeholders to minimise or eliminate risky conditions. These include threats that may cause accidents and bodily injury, as well as, emotional and psychological distress. A safe learning environment is an inclusive community where each learner's unique attributes are affirmed within a framework of common values. It is where all members participate in decision making and cooperate to promote the well-being of all. Such a community is characterised by caring and cooperative relationships, and a framework of common values that include:

- Respect for democratic values, rights, and responsibilities.
- Respect for cultural diversity.
- Respect for law and order.
- Respect for the environment.
- Respect for individual differences; students and teachers with special needs.
- Clear and consistent behavioural expectations.
- Appropriate and positive role modeling by staff and students.

School Safety as a Strategy for Enhancing Learners' Discipline

A positive school climate encompasses the physical attributes of the school, as well as the levels of order, satisfaction and productivity. Four guiding principles to be considered are:

- Positive school climate (physical environment, human relationships and school culture) .
- Clear, appropriate and consistent expectations.
- Child participation.
- Fairness, equity and continuous school improvement.

The following are the pillars that enhance a conducive environment and promote discipline among learners.

S/N	Factor	Strategy
1	Leadership	• A democratic and participatory style of authority to guide and inspire the commitment of teachers, learners, parents and the local community. • Learners involvement in problem-solving, school enhancement, and policy direction. This makes them to feel valued and respected and creates in them a sense of ownership of and responsibility for the school community. • Focus on the rights, interests and expectations of children, teachers, parents and the community.
2	School safety policies	• Preparation of school codes of conduct in collaboration with all the stakeholders (learners, staff and parents/guardians). • Adherence to the Basic Education regulations on approved school hours. • Application of firm, fair and consistent positive discipline. • Encouraging staff to be role models for effective communication, mutual respect and problem solving. • Clear identification procedures for enrolment of learners. • Clearly laid procedures for reporting and handling complaints (open forums, suggestion boxes, and such others). • Clear guidelines for sending learners home for school fees and other cases not related to school fees. • A procedure for vetting of all information accessed by learners. • Clear guidelines for visitation of learners (by who, when, and the practices to allow/disallow). • Adherence to the School Safety and Standards Manual.

3	Physical infrastructure	• An appropriate surveillance system (perimeter fence, gate and security guards to secure the premises). • Valid ownership documents (title deed, allotment letter or lease agreement) to avoid exposing learners to unnecessary anxiety which could breed indiscipline). • Staff housing - especially in boarding schools for enhanced supervision. • Adequate and suitable placement of school facilities and resources (tuition, boarding and sanitation rooms; staff quarters; sports fields and kits; environmental gardens and furniture. • Safe transportation of learners in adherence to traffic rules. • Proper landscaping to ease movement and reduce indiscipline. • Proper lighting in all areas within the school compound and especially in boarding schools. • Arrangement of desks (in classrooms) and beds (in dormitories) to enhance positive socialisation. • Involvement of learners in general maintainance of school infrastructure (monitoring, cleanliness and such others) to minimise disease outbreaks, distress and indiscipline. • Use of infrastructure to communicate messages that promote positive behaviour amongst learners (talking walls). • An emergency response preparedness mechanism for timely action that could limit distress and indiscipline.
4	Health and nutrition	• A centralised school feeding programme to limit negative influence of learners from the external environment, and to inculcate sharing, patience, kindness, respect, and love. • Except for learners with special dietary needs, provide a common menu to avoid inappropriate misconduct such as stealing, loss of self-esteem and poisoning. • An effectively and efficiently planned and managed feeding program to minimise incidences of indiscipline like time wastage, and scrambling. • First aid services, a school nurse and recommended hospitals.
5	Effective classrooms	• Communicate academic expectations clearly. • Creative a stimulating learning atmosphere. • Flexible routines, with the use of timetables to promote quality learning time. • Appropriate identification, assessment and placement of children with special education needs. • Interactive methodologies that maximise on learners' participation.

6	Values/skills and character education curriculum	• Mainstreaming life skills education in both the formal and informal instruction. This will promote concepts of respect, caring for self and others, conflict resolution, concern for the environment, and principles of law and citizenship. • Focus on ethno-cultural sensitivity and the need to address gender role stereotypes.
7	Psycho- social support	• Purposeful staffing and supervision models. • Programs to enhance personal wellness. • Peer programs to provide support, encouragement, awareness and education. • Access to counselors, resources and teachers to assist with social/ emotional problems, school and career issues.
8	Staff development	• Positive school climate enhancement activities. • Positive methods of discipline and school management. • In-service to staff on managing violent and aggressive student behaviour. • Training stakeholders to address 'best practice' for working with learners with specific learning and behaviour needs.
9	School community linkages and partnerships	• Community awareness and participation in the school to enhance cohesiveness, support and effective use of institutional resources. • A welcoming school environment to encourage increased participation by stakeholders in education, school activities and school policy-making. • Active involvement of learners in community service activities to create a climate of caring, respect and trust. • Involvement of parents/guardians in activities that assist children with academics.

Conclusion

A healthy, safe, and supportive learning environment enables the learners, teachers, and the entire school system to function in powerful ways.

Such an environment promotes innovation, inquiry and competitiveness. It also reinforces and enhances leadership capacity in the school because competent, excellent and dedicated educators want to work under such conditions. A safe learning environment therefore takes care of the learners psychological, cognitive and physical needs.

Thus, learning institutions need to recognise a sustained positive approach that encourages all the members of the school community to:

- Value diversity.
- Contribute positively to the safety and well being of themselves and others.
- Act independently, justly, cooperatively and responsibly in school work, civic and family relationships.
- Contribute to the implementation of appropriate strategies and maintain safe and supportive learning environment.
- Learners are also assisted to develop social and emotional management skills that enhance resilience and resourcefulness to make good decisions.

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